

02:00 PM

23-CIV-01407 ROSARIO CUSTODIO, ET AL. VS. BRIUS, LLC, ET AL.
LINE 2

ROSARIO CUSTODIO
BRIUS, LLC

JAY P. RENNEISEN
LINDSEY ROMANO

PLAINTIFFS' MOTION FOR APPOINTMENT OF DISCOVERY REFEREE

TENTATIVE RULING:

Department 11 is recused in this matter.

02:00 PM

24-CLJ-00899

WELLS FARGO BANK, N.A. VS. LEMAN P. PATTON

LINE 3

WELLS FARGO BANK, N.A.
LEMAN P. PATTON

HARLAN M. REESE
JENNIFER TUNDER

PLAINTIFF'S MOTION FOR JUDGMENT ON THE PLEADINGS

TENTATIVE RULING:

Plaintiff Wells Fargo Bank, N.A.'s unopposed Motion for Judgment on the Pleadings is DENIED.

To the extent that it is even necessary for the Court to judicially notice the file in the instant case, Plaintiff's unopposed Request for Judicial Notice ("RJN") is GRANTED pursuant to Evidence Code Section 452 (d).

"A motion for judgment on the pleadings has the same function as a general demurrer but is made after the time for demurrer has expired. Except as provided by CCP § 438, the rules governing demurrers apply—motion for judgment on the pleadings is equivalent to a demurrer." Motion for Judgment on the Pleadings, Cal. Prac. Guide Civ. Pro. Before Trial Ch. 7(I)-D (quotations and citations omitted). "A motion by plaintiff (or cross-complainant) can be made on the ground that the complaint states facts sufficient to constitute a cause of action against the defendant (or cross-defendant) and the answer does not state facts sufficient to constitute a defense to the complaint." *Id.* (citing Code of Civil Procedure Section 438(c)(1)(A)).

A general demurrer under Section 430.10(e) of the Code of Civil Procedure for failure to state a cause of action challenges defects that appear on the face of the pleading under attack; or from matters outside the pleading that are judicially noticeable. *Blank v. Kirwan* (1985) 39 C3d 311, 318.

"It is not necessary that the cause of action be the one intended by plaintiff. The test is whether the complaint states any valid claim entitling plaintiff to relief. Thus, plaintiff may be mistaken as to the nature of the case, or the legal theory on which plaintiff can prevail. But if the essential facts of some valid cause of action are alleged, the complaint is good against a general demurrer." Cal. Prac. Guide Civ. Pro. Before Trial Ch. 7(I)-A (citations omitted)

"For the purpose of testing the sufficiency of the cause of action, the demurrer admits the truth of all material facts properly pleaded (i.e., all ultimate facts alleged, but not contentions, deductions or conclusions of fact or law)." Cal. Prac. Guide Civ. Pro. Before Trial Ch. 7(I)-A (citations omitted).

Plaintiff brings the instant motion pursuant to Code of Civil Procedure section 438 for the amount set forth in the complaint, \$27,153.06. Defendant has not filed a brief in opposition.

Defendant generally denies the allegations in the Complaint. RJN, Ex. A, Answer, section 3. The law allows a defendant to make general denials to a verified complaint in civil limited actions. Code Civ. Proc. § 431.30 (d).
